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State of Madras v Champakam Dorairajan

In less than eighteen months of India becoming a republic, three judges of the Madras High Court and seven judges of the Supreme Court voted to strike down a Madras government order providing for reservations. Prime Minister Nehru was pressured into agreeing to amendments to the Constitution to overturn these decisions and the provisional Parliament (in place until the first general election was held) voted to make those amendments. As two prominent scholars have put it, the 'battle over admissions to higher education is as old as independent India'.[1]



In the early years of the twentieth century, there was growing dissatisfaction among non-Brahmins in the Madras Presidency of British India. Brahmins, who comprised a small segment of the population, had disproportionate access to education and government jobs. While they comprised just 3.2 per cent of the population, they occupied 53 per cent of the posts of deputy collector, over 71 per cent of the posts of sub-judge and over 66 per cent of the posts of district munsif.[2] It was in this environment that the South Indian Liberal Federation, otherwise known as the Justice Party, was established as a party 'articulating anti-Brahminism and acting against the ideals of the freedom movement'.[3] The Justice Party considered